

BID BOND

STATE OF _____

COUNTY OF _____

KNOW ALL MY BY THESE PRESENTS that _____ as
Principal, hereinafter called Bidder and _____ as Surety, are
held and firmly bound unto the City of Lauderdale Lakes, Florida, hereinafter called the
City in the penal sum of:

_____ Dollars \$ _____

lawful money of the United States, for the payment of which sum will and truly to be
made, we bind ourselves, our heirs, executors, administrators, and successors, jointly
and severally, firmly by these presents.

THE CONDITIONS OF THIS OBLIGATION ARE SUCH, that whereas the Bidder has
submitted the accompanying Bid, dated _____, 20__ ,
for:

PROJECT NAME:

NOW, THEREFORE,

1. It is a condition precedent to the submission of said Bid that a certified check,
cashiers check or bid bond in the amount of five percent (5%) of the base Bid be
submitted with said Bid as a guarantee that Bidder will, if awarded the contract, enter into
a written contract with the City.

2. If the Bidder shall not withdraw said bond within ninety (90) days after date of
the same, and shall within fifteen (15) days after the prescribed forms are presented
to him for signature, enter into a written contract with the City in accordance with the Bid
as accepted, and give bonds with good and sufficient surety or sureties, as may be
required, for the faithful performance and proper fulfillment of such contract, then the
above obligation shall be void and of no effect, otherwise the sum herein stated shall be
due and payable to City and the Surety herein agrees to pay said sum immediately
upon demand of the City in good and lawful money of the United States of America as
liquidated damages for failure thereof of said Bidder.

IN WITNESS WHEREOF, the above-bounded parties executed this instrument under their several seals, this ___ day of _____, the name and corporate seal of each corporate party being hereto affixed and these presents duly signed by its undersigned representative, pursuant to authority of its governing body.

WITNESS: (If Sole Ownership or Partnership, two (2) Witnesses required. If Corporation, Secretary Only will attest and affix seal.)

WITNESSES:

BIDDER

(AFFIX SEAL)

By (Signature & Title)

Typed Name & Title signed above

ATTEST:

CORPORATE SURETY (Affix Seal)

Secretary

By (Signature & Title)

Typed Name & Title signed above

ATTEST:

Attorney in Fact (Affix Seal)

Business Phone

Secretary

Business Address

City State

(AFFIX SEAL)

Name of Local Insurance Agency

Bidder and Surety, jointly and severally, bind themselves, their heirs, executors, administrators, successors and assigns to pay to Owner upon default of Bidder any difference between the total amount of Bidder's bid and the total amount of the bid of the next lowest, responsible and responsive Bidder as determined by Owner for the Work required by the Contract Documents, provided that:

1.1. If there is no such next lowest, responsible and responsive Bidder, and Owner does not abandon the Project, then Bidder and Surety shall pay to Owner the penal sum set forth on the face of this Bond, and

1.2. In no event shall Bidder's and Surety's obligation hereunder exceed the penal sum set forth on the face of this Bond.

2. Default of Bidder shall occur upon the failure of Bidder to deliver within the time required by the Bidding Documents (or any extension thereof agreed to in writing by Owner) the executed Agreement required by the Bidding Documents and any performance and payment bonds required by the Bidding Documents and Contract Documents.

3. This obligation shall be null and void if:

3.1. Owner accepts Bidder's bid and Bidder delivers within the time required by the Bidding Documents (or any extension thereof agreed to in writing by Owner) the executed Agreement required by the Bidding Documents and any performance and payment bonds required by the Bidding Documents and Contract Documents, or

3.2. All bids are rejected by Owner, or

3.3. Owner fails to issue a notice of award to Bidder within the time specified in the Bidding Documents (or any extension thereof agreed to in writing by Bidder and, if applicable, consented to by Surety when required by paragraph 5 hereof).

4. Payment under this Bond will be due and payable upon default by Bidder and within 30 calendar days after receipt by Bidder and within 30 calendar days after receipt by Bidder and Surety of written notice of default from Owner, which notice will be given with reasonable promptness, identifying this Bond and the Project and including a statement of the amount due.

5. Surety waives notice of and any and all defenses based on or arising out of any time extension to issue notice of award agreed to in writing by Owner and Bidder, provided that the total time for issuing notice of award including extensions shall not in the aggregate exceed 120 days from Bid Due Date without Surety's written consent.

6. No suit or action shall be commenced under this Bond prior to 30 calendar days after the notice of default required in paragraph 4 above is received by Bidder and Surety and in no case later than one year after Bid Due Date.

7. Any suit or action under this Bond shall be commenced only in a court of competent jurisdiction located in the state in which the Project is located.

8. Notices required hereunder shall be in writing and sent to Bidder and Surety at their respective addresses shown on the face of this Bond. Such notices may be sent by personal delivery, commercial courier or by United States Registered or Certified Mail, return receipt requested, postage pre-paid, and shall be deemed to be effective upon receipt by the party concerned.

9. Surety shall cause to be attached to this Bond a current and effective Power of Attorney evidencing the authority of the officer, agent or representative who executed this Bond on behalf of Surety to execute, seal and deliver such Bond and bind the Surety thereby.

10. This Bond is intended to conform to all applicable statutory requirements. Any applicable

requirement of any applicable statute that has been omitted from this Bond shall be deemed to be included herein as if set forth at length. If any provision of this Bond conflicts with any applicable provision of this Bond conflicts with any applicable provision of any applicable statute, then the provision of said statute shall govern and the remainder of this Bond that is not in conflict therewith shall continue in full force and effect.

11. The term "Bid" as +used herein includes a Bid, Offer or Proposal as applicable